IN THE SUPERIOR COURT OF JUDICATURE

IN THE COURT OF APPEAL

SEKONDI A.D. 2025

CORAM:

JUSTICE S. ROSETTA BERNASKO ESSAH (MRS.) J.A. (PRESIDING)

JUSTICE FRANCIS OBIRI (MR.) JA

JUSTICE YAA ONYAMEYE GYAKOBO (MRS.) J.A

CIVILAPPEALNO.: H1/43/2022

DATE: 17TH DECEMBER, 2025

BETWEEN

ANTHONY ARTHUR

(Suing on his behalf and on behalf of the

Estate of Francis Kingsley Arthur-deceased)

H/NO. CH 133, CHAPEL HILL, TAKORADI - PLAINTIFF/APPELLANT

AND

1. **MMA ASOLE ADOKO - 1ST DEFENDANT/RESPONDENT**
2. **EMMANUEL MOSES - 2ND DEFENDANT/RESPONDENT**
3. **PAPA ZUWALE - 3RD DEFENDANT/RESPONDENT**
4. **SISTER FATI - 4TH DEFENDANT/RESPONDENT**

All of PT 164, SECTOR B LAYOUT

WEST TAKORADI

J U D G M E N T

SOPHIA R. BERNASKO ESSAH (MRS) JA:

This is an appeal lodged by the Plaintiff/Appellant (hereinafter referred to as the Plaintiff) against the judgment of the Circuit Court, Takoradi, which was in favour of the Defendants/Respondents (herein after referred to as Respondents). The grounds of appeal as endorsed on the notice of appeal are as follows:

1. *That the judgment is against the weight of evidence;*
2. *That the learned trial judge erred in holding that the Plaintiff's action is statute-barred;*
3. *That the learned trial judge failed adequately, or at all, to consider the case of the Plaintiff/Appellant.*

Although the Appellant indicated an intention to file additional grounds of appeal upon receipt of the certified true copy of the record of proceedings, no such additional grounds were in fact filed.

The facts giving rise to the instant appeal, as gleaned from the record, may be summarised as follows.

Background Facts

On 6th August, 2019, the Plaintiffs, namely Gloria Arthur and Anthony Arthur, in their capacities as the wife and son respectively, and as administrators of the estate of the late Francis Kingsley Arthur (deceased), instituted an action in the Circuit Court, Takoradi, against the Defendants herein, who are the wife and children of one Mr. Adoko (also deceased). On 14th December, 2019, the first Plaintiff, Gloria

Arthur, passed away, whereupon the title of the suit was amended, leaving Anthony Arthur as the sole Plaintiff.

The Plaintiff's case is that during the lifetime of the said Francis Kingsley Arthur he was the lessee of Plots Nos. 164, 165, 170 and 171, Sector 8B Layout, West Tanokrom, having acquired

the said plots from the Brempong Yaw Ntwea Stool Family of Effia in 1977. In proof of this assertion, the Plaintiff relied on a lease agreement (found at page 45 of the Record of Appeal), executed by the Regent of the Brempong Yaw Ntwea Stool Family, Ebenezer Kwamina da-Costa, together with the Ebusuapanyin, the Linguist and the Stool Secretary.

The Plaintiff further averred that his father's ownership of the land, particularly Plots Nos. 164 and 171, Sector 8B Layout, West Tanokrom, had been confirmed in prior judicial decisions, namely:

- F. K. Arthur v. Mr. Adoko, Suit No. CS:S1/94, judgment dated 18th April 1995, before the Circuit Court; and
- Gloria Amartey & Another v. Mma Azole Adoko, Suit No. A1/13/2018, before the District Court, Habour Area.

It is the Plaintiff's further case that in those earlier proceedings Mr. Adoko and his successors in title, privies and assigns, including the present Defendants, were found to have trespassed onto Plots Nos. 164

and 171, mulcted in damages, and perpetually restrained from interfering with the ownership and possession of those lands.

Notwithstanding these decisions, the Plaintiff alleges that the Defendants, as successors in title to the said Mr. Adoko and with full knowledge of the said judgments, continue to lay claim to Plots Nos. 164 and 171 and have refused to vacate same or deliver possession to the Plaintiff despite persistent demands. The Plaintiff therefore sought, inter alia, an order ejecting the Defendants from Plots Nos. 164 and 171, Sector 8B Layout, West Tanokrom, Takoradi, and recovery of possession.

In their defence, the Defendants averred that they are aware of a grant of a parcel of land by the Brempong Yaw Ntwea Stool Family of Effia to the late F. K. Arthur, but contend that such grant was subsequent to an earlier customary grant of a parcel of land at West Tanokrom to their husband and father, the late Mr. Adoko, by the Anona Family of Effia.

They pleaded that by virtue of a customary grant made in 1973, at a time when the area had no formal layout, Mr. Adoko acquired an interest in a portion of the family land measuring 0.19 acres. Following the grant, he entered into immediate occupation and possession,

constructed a house on part of the land and planted coconut and other trees to demarcate the boundaries of his holding.

The Defendants further averred that several years after they had been in possession of the said land, F. K. Arthur also came to the area and was granted land by the same family; that when he began developing his land, it was Mr. Adoko who permitted him to deposit his building materials in his house and to enjoy the produce of the coconut trees planted along the boundary.

They further contended that in the earlier action commenced by F. K. Arthur against the 1st Defendant's husband, the Anona Family of Effia, represented by its head, one Paul Kwamena Abroba, testified on behalf of Mr. Adoko and confirmed the customary grant of the 0.19-acre land to him, demarcated by the coconut trees, at a time when the area had not yet been laid out.

On the basis of these matters, the Defendants contended that F. K. Arthur took no steps to enforce the judgment in Suit No. CS:S1/94

because he became convinced that Mr. Adoko was in occupation of the land as of right and was therefore not a trespasser.

In the alternative, the Defendants pleaded that even if the said judgment conferred any title or interest in the disputed plots upon the Deceased, such title or interest has been extinguished by effluxion of time under

the Limitation Act, 1972 (NRCD 54), as well as by laches and acquiescence, in that Mr. Adoko and, after his demise, his family including the Defendants, have been and remain in effective,

uninterrupted occupation and possession of the said plots without challenge from the Deceased or the Plaintiffs until the commencement of the present action. They therefore contended that the Plaintiffs are abusing the process of the Court and are not entitled to the reliefs sought.

The Plaintiff joined issue with the Defendants and averred that the issue of limitation had been raised and dismissed in the earlier cases; and that the question of title to the disputed lands had already been determined by the Circuit Court in favour of the Deceased. To that extent, the Plaintiff contended that the Circuit Court, Takoradi, before whom the present action was filed, is functus officio on the issue of title and that the Defendants ought to be ejected from the land forthwith.

Judgment of the Trial Court

Although the sole issue set down for determination at the trial was whether the Plaintiff was entitled to the reliefs sought, the pleadings and arguments advanced by Counsel before the trial court raised additional matters. These included allegations that the Plaintiff's action constituted an abuse of the Court's process on the grounds that the suit was caught by the Limitation Act, 1972 (NRCD 54), by reason of the date of the first judgment in 1995, and further that the doctrine of *res judicata* operated as a defence arising from the said 1995 judgment. The trial court therefore, and rightly so, resolved these preliminary issues first.

The learned trial judge found that both counsel agreed that the issue of ownership had been finally determined in 1995, and that a repeat of the same matter involving the same parties or their privies had been dismissed by the District Court. Notwithstanding that concession, the trial judge held that the instant suit was premised on a distinct relief, namely, an order

for ejection of the Defendants and recovery of possession of Plot Nos. 164 and 171, Sector B Layout, West Tanokrom.

In his judgment, the trial judge relied on section 5(2) of the **Limitation Act, 1972 (NRCD 54)**, which provides that:

"*A person shall not bring an action upon a judgment after the expiration of twelve years from the date on which the judgment became enforceable*."

Applying this statutory provision, the court ruled that the Plaintiff could not enforce any of the orders granted by the Circuit Court in 1995—namely, damages of GH₵2,000 cedis, costs of GH₵60,000 cedis, and a perpetual injunction restraining the Defendant, their assigns, agents, privies and all persons claiming under them from interfering with Plaintiff's possession of Plots 164 and 171.

The trial court further noted that the reliefs of ejection and recovery of possession had not been sought in the earlier Circuit Court action and were therefore not granted.

The Court then accepted the Defendants' contention that, following the 1995 judgment, the Plaintiff's predecessor had compromised the judgment; otherwise, he would have enforced it. The Defendants' allegation that they did not pay any of the damages or costs awarded was not denied by the Plaintiff, either in the pleadings or in the witness

statement. The trial judge questioned why the Plaintiff had not, timeously, sought ejection and recovery of possession although he was

aware that the Defendant had constructed six rooms on the disputed land and had subsequently added additional structures. Instead, it was only in 2019 that the representatives of the estate sought ejection and recovery of possession when they filed the suit at the District Court, by which time the matter had become *res judicata.*

The trial court reasoned that if the Plaintiff could wait for twenty-six (26) years—specifically, from 1st April, 1995 to 15th July, 2021, when hearing concluded—and observe the Defendants expand their

structures on the land from six rooms to the number alleged, then he could not, after such delay, seek an order for ejection and recovery of possession. In so holding, the Court relied on **Ago Sai & Others v. Kpobi Tetteh Tsuru III (2010) SCGLR 762**.

On the basis of these findings, the trial court dismissed the Plaintiff's claims and awarded costs in favour of the Defendants.

The instant appeal is mounted on the above judgment of the trial court.

Submission of Counsel for Plaintiff

In his written submissions, Counsel for the Plaintiff/Appellant argued the three grounds of appeal together. He submitted that the trial court had found as a fact that the issue of ownership of Plot Nos. 164 and

171, Sector B Layout, had been finally determined in 1995, and that a repeat of the same issues before the District Court, Harbour Area,

Takoradi, had similarly been dismissed. He argued that title to the said plots had been decreed in favour of his father in the Circuit Court judgment, and the Defendants' Counterclaim had been dismissed. Counsel contended that the issues raised by the Defendants in the statement of defence had already been finally and conclusively determined.

In order to establish that a party may sue upon a judgment in a fresh action where a declaratory order had been made in an earlier case, he relied on **Republic v. Duffour; Ex parte Asare (2007–2008)** and **Dahabieh v. S.A. Turque and Bros (2001–2002) SCGLR 489**. Thus, he argued, the Plaintiff was entitled to an enforceable order for recovery of possession in respect of the disputed plots, particularly given the Defendants' persistent refusal to vacate the land despite their knowledge of the prior judgments.

Counsel further argued that the trial judge failed to appreciate that the Plaintiff's capacity derived from letters of administration issued to administer the estate of Francis Kingsley Arthur, and therefore erred in holding the action statute-barred. He submitted that upon the

deceased's death on 13th June, 2013, letters of administration were obtained on 18th February, 2014. Relying on **Djin v. Musah Baako**

[2007 – 2008] 1 SCGLR 686, he asserted that the right of action to recover land of a deceased intestate accrues only after the grant of letters of administration. Accordingly, the cause of action accrued in February, 2014, and the suit filed on 6th August, 2019—five years thereafter—was within time.

Counsel therefore submitted that the Plaintiff's claim was maintainable, and that the trial judge erred in dismissing the suit pursuant to sections 10(1) and 10(6) of the Limitation Act.

He further contended that the trial judge erred in concluding that the 1995 judgment had been compromised. He argued that neither the defence nor the witness statements state that the Defendants did not pay the damages and costs awarded; that inference, he said, was improperly introduced by the trial judge into the pleadings and evidence. Instead, the Defendants' case was that although an appeal had been filed, it was not pursued because the Plaintiff's father realised the land belonged to Adoko, and these averments were expressly denied by the Plaintiff. Counsel considered that there were inconsistency in the

Defendants' position—first alleging that they filed an appeal, then later asserting that they merely attempted to appeal, that notwithstanding,

the trial judge accepted the Defendants' version that the judgment had been compromised and therefore not executed.

Counsel further argued that although the Defendants' attorney had informed the court that he did not personally reside on the disputed land, he nevertheless testified under cross-examination that the Defendants had resisted all efforts by the Plaintiff to take possession.

He submitted that this demonstrated a persistent refusal to comply with the judgments of the Courts.

On the basis of these above, he urged this Court to set aside the trial court's judgment and allow the appeal.

Submission of Counsel for Defendant

In his written submissions counsel for the defendant relied on the case of **Boakye vs Appollo Cinemas & estates Ghana ltd (2007-2008) 1 SCGLR 458** to say that there must be an end to litigation. That equity would not allow a party who stood by to allow another to spend money to develop his property to later take advantage of the situation.

He also relied on the case of **Isaac Cobblah Fiscian vs Henry Nelson (1946) 12 WACA 21** which held that a former owner would not be

allowed to claim land where he stood by for a long time while someone else occupied the land and incurred pecuniary commitments under the impression that he was entitled to the land.

Anchoring his submissions on the judgment of the Circuit Court of 1995 he argued that the Plaintiff's father died intestate on 13th June, 2013 which is a duration of over 18 years from the date obtained in the judgment, yet the Plaintiff's father, through whom the Plaintiff sought to trace his right and or interest in the plots, which have been in the effective possession of the Defendant did not enforce the judgment but rather looked on as the Defendant and the late Adoko continued to further develop the said plots in dispute, without any protests from him after the said judgment.

Further that it is settled law that an administrator of an estate cannot successfully sue in respect of a subject matter where the interest in or the right of the deceased in the subject matter of the suit has been extinguished by law.

He therefore argued that **Djin v. Musah Baako [2007 – 2008] 1 SCGLR 686** was inapplicable and prayed that the appeal be dismissed.

Legal Analysis and Opinion

The central grievance of the Plaintiff is that the trial court erred in concluding that his action was statute-barred.

As a starting point, the title to Plots 164 and 171 was conclusively determined in favor of Plaintiff's father. It is undisputed that the late F.K. Arthur obtained a valid judgment in 1995 declaring him owner of the disputed plots and restraining Defendants father from interfering with his possession. That judgment was never set aside on appeal; it is a final and extant decision.

The Defendants, being the widow and children of Mr. Adoko, are his successors in title, and are bound by the 1995 judgment. Indeed, in the judgment of the District Court, habour Area, Takoradi in a case between Plaintiff herein's late mother as Plaintiff and the first Defendant (Mma Azole Adoko) in respect of the land in issue (Reference page 62 of Record of Appeal) the court on the 6th of June, 2019, dismissed the case because the issue of title had already been decided by a competent

Court in 1995. Thus that issue was *res judicata*. On that basis therefore, the Defendants have no subsisting defence on the merits as to ownership.

However, the crux of the matter is whether the Plaintiff can enforce that ownership after decades of inaction.

Now the Limitation Act, 1972 (NRCD 54) sets strict time limits within which actions must be brought. Two provisions are particularly relevant here.

First, Section 10(1) of the Act provides that *"No action shall be brought to recover any land after the expiration of twelve years from the date on which the right of action accrued to the person bringing it or to some person through whom he claims."*

Thus if a person has a cause of action to recover possession of land he must commence proceedings within twelve (12) years from the time the cause of action arose. If he fails to do so, the action becomes time-barred. **Manu and Another v Yeboah [1982–83] GLR 34–46 (CA); Armar Nmai Boi & Ors v Adjetey Adjei & Ors (Supreme Court, 19 March 2014, Civil Appeal No. J4/8/2013)** referenced.

Section 10(6) of the Act goes further to state that on the expiration of the prescribed period (here, 12 years), *"the title of that person to the land shall be extinguished."* This provision has been applied and explained

in cases such as **John K. A. Klu v Mavis Darko & Dr Kofi Konadu Apraku [2009] SCGLR 741 (SC); GIHOC REFRIGERATION**

HOUSEHOLD PRODUCTS LTD. V HANNA ASSI (2005 – 2006) SC GLR 458 where the Supreme Court held that expiration of the limitation

period extinguishes the owner's title. Thus the law not only bars the remedy but actually extinguishes the right and interest of the person who slept on his claim. The effect is to vest title in the adverse possessor after the lapse of the limitation period. These provisions codify the common law concept of adverse possession, as reflected in **Kwan v Nyieni (1959) 1 GLR 67 (PC)** and **Asare v Brobbey [1971] 2 GLR 331**.

Second, Section 5(2) of the Act specifically addresses actions *'upon a judgment'*, providing that *"An action shall not be brought upon a judgment after the expiration of twelve years from the date on which the judgment became enforceable.*

Viewed from the above sections of the Limitation Act, Plaintiff's action is both to recover land from the Defendants who are in possession and an action upon a judgment of 1995 which had declared his father's title. These are execution or enforcement steps to give effect to the title that was declared in 1995.

The key question is: when did the cause of action accrue. In **Mahama v. Electoral Commission & Another (SC, 4 March 2021, unreported)** a cause of action was explained as follows: *" A cause of action is the*

existence of facts which give rise to an enforceable claim or a factual situation the existence of which entitles one to obtain from the court a

remedy against another". Reference also **Spokesman (Publications) Ltd v Attorney-General *[1974] 1 GLR 88 (SC)* ; *Letang v Cooper* [1965] 1 QB 232;Halsbury's Laws of England (4th ed, reissue, Vol. 37, para 20. Ampration Manufacturing Co. Ltd Vs Divestiture Implementation ,,,(2009) SCGLR 692**

Whereas the trial judge took the view that the cause of action accrued in 1995 when the Circuit Court gave judgment, The Plaintiff, however, argues that no cause of action accrued to him until 2014 when he obtained letters of administration, because prior to that he had no capacity to sue. The Plaintiff relies on the principle from *Djin v. Musah Baako* (supra) that for an estate of an intestate, a cause of action to recover the deceased's property accrues only when a personal representative is appointed.

The factual scenario in *Djin v. Musah Baako (supra)* involved two descendants litigating over land that had originally been in dispute

between their respective fathers. The Plaintiff (Adu Kofi Djin) was the administrator of his late father's estate, and the Defendant (Seidu Musah Baako) was the administrator of his late father's estate.

The Defendant's father (Musah Baako) had died in 1967. In 1969, Defendant left for Nigeria and returned in 1998. He only obtained letters of administration to his father's estate when he returned to Ghana in

1998. The land in question had been occupied by the Djin family (Plaintiff's side) for many years, and the Djin family argued that the Musah Baako side's claim was time-barred due to this long delay. The Supreme Court rejected that argument, emphasizing that limitation did not start running against the Musah Baako estate until the appointment of an administrator in 1998. The Court had accepted the evidence of the Defendant/Beneficiary that he had been residing in Nigeria and could only obtain the letters of administration upon his return. The Supreme Court held that when a person entitled to sue dies intestate, time does not run against his estate for recovery of land until a personal representative is in place. In holding 2

of the headnote it held that *"the right to recover land of an intestate accrues from the date of letters of administration.*

This proposition goes primarily to capacity and accrual where the land forms part of an intestate estate and there was no earlier exhaustion of the deceased's rights**.** In context, the Supreme Court was dealing with actions brought by administrators of deceased persons where the

deceased's land had devolved on the estate and the issue was when the estate's *own* right to recover accrued for limitation purposes.

But the Djin case can be distinguished on at least three inter-locking grounds.

(i) In Djin the intestate's right had not already been extinguished in his lifetime. In contrast in the instant case, the Plaintiff's father's title was extinguished by the time of his death (2013) due to the running of the full 12-year period post-1995.

It is instructive that when the Plaintiff's father passed in 2013, he had no subsisting right or title to the land to transmit to his estate, having lost it by adverse possession. By operation of Section 10(6), his title was extinguished in 2007 at the latest. At the date of his death, there was no longer any title in the land capable of forming part of his estate. The grant of letters of administration in 2014 could not resurrect an extinguished title. Djin is authority for when the estate's right to recover

accrues where the deceased dies with a subsisting title; it is not authority for reviving a title that had already been destroyed by limitation before death.

Once the statute run and title extinguished, there was nothing for the administrator to recover. This approach is consistent with **Nartey v**

Mechanical Lloyd Assembly Plant Ltd [1987–88] 2 GLR 314, which affirms that extinguishment under the Limitation Act is final.

(ii) In Djin the right of action first accrued to the administrator the Defendant therein; in the instant case it first accrued to the Plaintiffs father.

Section 10(1) of the Limitation Act is crucial: it provides

"…from the date on which the right of action accrued to the person bringing it ***or, if it first accrued to a person through whom he claims, to that person****."*

In Djin, the Supreme Court treated the right to recover land as having first accrued to the administrator upon the grant of letters, because, on

their analysis, there had previously been no properly constituted person capable of suing in respect of the intestate land. Hence consistent with

Section 10(1), the date of letters of administration was held as the date of first accrual.

In the instant case, however the right of action to recover the land unquestionably first accrued to the Plaintiff's father, who not only had legal capacity but actually sued and obtained a judgment in 1995.

Plaintiff herein claims through his father. The provisions of Section 10(1) require that due account be taken of the date on which the right of action first accrued to that predecessor.

In my view therefore to read *Djin* as allowing a fresh accrual date for an administrator even where the right first accrued to (and expired against) the deceased in his lifetime would be to ignore the second limb of section 10(1). *"…or, if it first accrued to a person through whom he claims, to that person." Djin's* case should not be taken that far. Accordingly, the Plaintiff's cause of action did not accrue afresh in 2014; by 2014 there was no cause of action left to accrue. The estate cannot be in a better position than the deceased.

(iii) In the Djin case both the Plaintiff and the Defendant/Counterclaimant as administrators of the estate were asserting their own right to recover land of an intestate. They sought a Declaration of title to the land in dispute which was an original estate claim. The action of the Plaintiff herein seeks to enforce a 1995 judgment in favour of his father. He bases his title and relief explicitly on the earlier judgment. In the premise, Sections 5(2), 10(1) & 10(6) of the Limitation Act converge to bar the claim of Plaintiff herein.

From the above the distinction between the two cases is very patent. Thus, the Plaintiff's reliance on *Djin* to reset the clock at 2014 when he

obtained the letters of Administration is not only misconceived but a misapprehension of the law in the context of an enforcement action.

In my view therefore, the learned trial judge was correct in holding that the action is statute-barred. Whether viewed as an action to enforce the 1995 judgment or as an action to recover land, the law is clear that after 12 years the claim cannot be maintained.

Before concluding it is apposite that I state the policy rational of the statute of limitation As Pwamang, JSC aptly observed in **Insp. Shitu Wabi & 76 Ors v. IGP & A-G (Civil Appeal No. J4/22/2022, 30 Nov 2022).**

"The policy of the law in setting limitation periods within which persons may take action to enforce their legal rights or forever hold their peace is a fundamental postulate of law that permeates all legal rights. Of

course, as with all laws, exceptions are made in limitation statutes and by binding judicial decisions. This policy ensures that persons do not have liabilities hanging over them and creating uncertainties for extended periods.

…… *Put slightly differently, statutes of limitation set the maximum period which a claimant can wait before filing a lawsuit. There are policy reasons in support of statutes of limitation. Suffice to mention just two. In one sense, statutes of limitation grant repose to potential defendants – a period after which they will have closure and forget about potential lawsuits that may be brought against them. In another sense, statutes of limitation ensure that there is an end to litigation, with the attendant policy reason of resource conservation for not just litigants but also the courts and, thereby, the taxpayer. To achieve these policy purposes, the limitation period starts counting from either the time that the cause of action accrues or when the claimant becomes aware of the violation."*

In other words, the law expects a rights-holder to be vigilant. If one "goes to sleep" on one's rights and allows a length of time to pass, the law will in time refuse to assist, in order to bring an end to disputes and provide certainty. As the maxim goes, *vigilantibus non*

dormientibus aequitas subvenit – equity aids the vigilant, not the indolent. The present case illustrates that rationale: allowing the Plaintiff to enforce the 1995
rights now would upend decades of factual reality and reward a long slumber.

I now address briefly the Plaintiff's complaint that the trial judge did not consider the merits or the weight of evidence of his case. The trial judge's focus on the limitation issue was appropriate, because if the action is statute-barred, the Court must dismiss it without delving into other substantive issues. The rule is that a time-bar goes to the jurisdiction of the Court to entertain the claim. In **Jean Hanna Assi vrs. Attorney General (Civil Appeal No. J4/17/2016**) it was held as follows: *"If indeed it is [statute barred], then there is no need to look at the merits of the case since the statute of limitation is a venerable shield that can be used to ward off indolent and piecemeal litigators."* Thus,
once the judge held rightly, in our view that the claim was time-barred, it was unnecessary for him to make detailed findings on other matters.

Conclusion

In conclusion, this Court finds that the Plaintiff/Appellant's action was properly dismissed as being barred by the Limitation Act, 1972 (NRCD
54). By April 2007 (twelve years after the 1995 Circuit Court judgment became enforceable), the estate of F.K. Arthur had lost the legal right to
evict the Defendants from the land. The attempt in 2019 to revive that right is therefore unsustainable in law.

The result may appear harsh given that the Plaintiff's late father was the rightful owner, but the law must protect diligence and certainty over stale claims. The Defendants, having been in undisturbed possession for decades with the acquiescence of the true owner, are entitled to finally treat the matter as laid to rest. There must, in the end, be an end to litigation.

In determining this Appeal, cognizance has been taken of the fact that an appeal is by way of rehearing {reference **Republic vs Condua Exparte Aaba (Substituted by Asmah (2013-2014) 2SCGLR 1032; Tuakwa vs Bosom (2001-2002) SCGLR 61** and **Oppong Vs Anarfi (2011-2012) 2 SCGLR 556**}, and rehearing implies an evaluation of the affidavit evidence and assessment of all documentary evidence and case law, we come to the firm conclusion that the judgment of the trial Circuit Court dated 15th July, 2021 must be affirmed and the appeal, lacking merit, is hereby dismissed.

SGD

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JUSTICE SOPHIA R. BERNASKO ESSAH

(JUSTICE OF THE COURT OF APPEAL)

SGD

I AGREE ……

JUSTICE FRANCIS OBIRI

(JUSTICE OF THE COURT OF APPEAL)

SGD

I ALSO AGREE …….

JUSTICE YAA ONYAMEYE GYAKOBO

(JUSTICE OF THE COURT OF APPEAL)

PARTIES:

PLAINTIFF/APPLICANT – PRESENT

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COUNSEL:

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